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Provision of December 19, 2024  
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## THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by  
Prof. Pasquale Stanzione, President, Prof.  
Ginevra Cerrina Feroni, Vice President, Dr.  
Agostino Ghiglia and Attorney Guido Scorza, members, and  
Dr. Claudio Filippi, Deputy Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament  
and of the Council of April 27, 2016, concerning  
the protection of individuals with regard to  
the processing of personal data, as well as the free  
movement of such data and repealing Directive  
95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing  
"Code on the protection of personal data,  
containing provisions for the adaptation  
of the national legal system to Regulation (EU)  
2016/679 of the European Parliament and of the Council, of  
April 27, 2016, concerning the protection of  
individuals with regard to the processing of personal data,  
as well as the free movement of such data and repealing Directive 95/46/EC (hereinafter  
"Code");

HAVING REGARD TO Regulation No. 1/2019 concerning  
internal procedures with external relevance,  
aimed at carrying out the tasks and  
exercising the powers delegated to the Guarantor for the  
protection of personal data, approved by  
resolution No. 98 of April 4, 2019, published in  
G.U. No. 106 of May 8, 2019 and on [www.gpdp.it](http://www.gpdp.it), doc.  
web n. 9107633 (hereinafter "Guarantor Regulation  
No. 1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary  
General pursuant to Article 15 of the Guarantor's  
Regulation No. 1/2000 on the organization and  
operation of the office of the Guarantor for the  
protection of personal data, doc. web n. 1098801;

REPORTING Prof. Ginevra Cerrina Feroni;

## PREAMBLE

### 1. Introduction.

With a complaint dated March 5, 2024, Ms. XX and Mr.  
XX, as adoptive parents of the minor XX,  
complained, through their lawyer, of alleged violations of  
the regulations concerning the protection of personal data,  
stating that the Provincial Directorate of the National Institute

of Social Security of XX had sent to the biological parent of the aforementioned minor, instead of to themselves, two communications regarding the civil disability benefit of which she was the beneficiary, thereby revealing to the aforementioned biological parent the surname acquired by the minor through the adoption and also causing, on the other hand, the forfeiture of the aforementioned civil disability benefit.

## 2. The investigative activity

From the aforementioned complaint, it emerges, in particular, that:

- “the Provincial INPS Directorate of XX (although it is in possession of the updated personal data [following the adoption of the aforementioned minor by Mr. XX and Ms. XX] since July 2021) notified a provision concerning the minor XX [by which, on February 10, 2024, the suspension of the assistance benefit provided by Law 104/1992, of which the minor previously benefited, was ordered due to the failure to present herself for the review visit] to the biological parent who has not held parental responsibility for some time”;
- “the summons [to the aforementioned review visit] was also sent to the biological parent.”

In a note dated May 7, 2024, the INPS, in response to a request for information pursuant to Article 157 of the Code, confirmed the transmission of the aforementioned communications – namely, the notice of summons to the review visit and the provision for the suspension of the benefit under Law 104/1992 dated February 10, 2024 - to the biological parent of the minor XX, stating the following:

- the data of the biological parent were still retained in association with the personal data of the minor XX, despite the adoption of the same by Mr. XX and Ms. XX, “since the application for recognition of the benefits under Law 104/1992 was submitted previously by the biological parent and [such data were therefore] recorded in the application itself as the legal representative of the minor”;
- in general, “in the case of minors, communications related to civil disability practices are sent to the legal representative (parent, guardian, or AdS)”; in this case, however, “despite the personal data of the minor having been updated by the XX office as early as July 21, 2021, the communications provided for by the then recent PEI of March 22, 2021 [reported below] were not made.

This resulted in the failure to update the legal representative of the minor”;

- “this oversight led to the sending of the [aforementioned] communications [...] to the biological father who had previously submitted the application for the benefit. We are, therefore, facing a particular case of the adoptive parent taking over

an existing benefit submitted by the biological parent and a failure to update a data that subsequently proved to be incorrect”;

- “following the report, the reference to the biological father has been updated to that of the adoptive father

and the [aforementioned] communications have been obscured so that they are not visible to users of the procedures.”

- “this occurrence could only be determined on the

**\*\*Applications for benefits submitted before November 15, 2023.\*\*** In fact, starting from that date, a control has been introduced whereby if a variation in the tax code of the minor is detected, the sending of automated communications will be blocked and managed by the office based on the documentary evidence present in the file of the interested party. In order to prevent any further cases, the operational instructions for the processing of data related to situations such as those under examination will be renewed and better specified.

The instructions referred to in the aforementioned communication of March 22, 2021, provide, in particular, that “with reference to requests for correction of health certification or existing personal data in the ARCA database of the Institute by beneficiaries of civil disability benefits in the case of adoption of a minor, [...] the following steps must be observed:

- the request for correction must be sent via email to the address [Gestione.ACG@inps.it](mailto:Gestione.ACG@inps.it);

- the communication must be accompanied by the request received with the relevant attachments, such as evidence of the requested correction;

- the DCTII will proceed to disconnect in ARCA the two tax codes, the previous one from the new assigned tax code, maintaining the separation of the information assets, unless otherwise requested in the above communication. In this way, the old and new position of the subject, determined by the corrected tax code, will no longer be linkable through ARCA;

- after the disconnection has taken place, the request will be forwarded to the Superior Medical Commission of the General Medical-Legal Coordination for the correction of the health report.

In the case of a benefit already being received with the previous tax code, following the correction, only the benefit being provided with the new tax code will be visible and accessible in the procedure. It is finally recommended to verify any persistence of benefits under the previous tax code after the disconnection.”

With a note dated September 9, 2024, the Office, based on the elements acquired, the checks carried out, and the facts emerged during the investigative activity, notified INPS, pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, on the assumption that the processing of personal data of the minor XX, including data related to her health, had been carried out in a manner not compliant with the principle of “accuracy” and in the absence of the appropriate and specific measures necessary to ensure adequate confidentiality of the personal data of the minor herself and her adoptive family and to ensure a level adequate to the risk of disclosure of such data to unauthorized parties, as well as in a manner not compliant with the principle of “lawfulness, fairness, and transparency,” due to the conflict with the regulatory framework of the sector; all of which therefore entailed a violation of Article 5, paragraph 1, letters a), d), and f), Article 9, paragraph 2, letter g), and Article 32 of the Regulation, as well as Article 2-sexies of the Code.

With the same note, the Office, noting that, in light of the note of May 7, 2024, in the event of a change in the tax code of the minor, the block on sending automated communications, functional to allow the competent INPS office to manage the case “based on the documentary evidence present in the file of the interested party,” had been provided by INPS exclusively for applications for benefits submitted after November 15, 2023, requested what technical measures had been adopted in relation to applications for benefits submitted before November 15, 2023, in order to adequately consider the risks presented by the processing arising particularly from the unauthorized disclosure of the data in question – as had occurred in the case subject to this provision.

With a note dated October 9, 2024, INPS – which did not request to be heard – subsequently submitted a defensive memorandum pursuant to Article 166, paragraph 6, of the Code, stating, particularly regarding the technical and organizational measures implemented for communications related to applications for benefits submitted before November 15, 2023, that:

- “the reference structures have already proceeded with an evaluation and an assessment of the consistency and coherence of the databases of the system regarding possible and potential risks of privacy violations concerning communications for adopted minors, including for all positions received prior to November 15, 2023. Therefore, measures are being taken to block any type of paper communication deemed non-compliant and related to positions subject to adoption measures”;
- “in particular, the IT interventions carried out are summarized: disconnection between the pre-adoption and post-adoption tax codes and, for some managements, transfer of the information assets of the pre-adoption tax code to the new tax code. For pre-adoption tax codes, any management by the offices will no longer be permitted. Furthermore, for such positions, before proceeding with the loading and calling for a visit for any review, the management systems will be required to cross-check with the data present in the procedure that manages the personal data positions (ARCA) in order to detect any changes in the tax code.”

### 3. \*\*The regulations on data protection\*\*

#### \*\*Personal Data\*\*

With regard to the specific case, it is preliminarily stated that public entities may process personal data if the processing is necessary to fulfill "a legal obligation to which the data controller is subject" or "for the performance of a task carried out in the public interest or in the exercise of public authority vested in the data controller" (Article 6, paragraph 1, letters c) and e), of the Regulation).

In this context, in implementation of Article 6, paragraph 3, of the Regulation - which, in outlining the requirements that must be met by the basis on which the processing of data referred to in Article 6, paragraph 1, letters c) and e), of the Regulation is founded, provides that the same may be established by Union law (Article 6, paragraph 3, letter a), of the Regulation) or by the law of the Member State to which the data controller is subject (Article 6, paragraph 3, letter b), of the Regulation) - Article 2-ter, paragraph 1, of the Code establishes that "the legal basis provided for by Article 6, paragraph 3, letter b), of the Regulation is constituted by a law or regulation or by general administrative acts."

As for the processing of personal data belonging to special categories referred to in Article 9 of the Regulation, including those related to the health of the data subject, it is permitted, as far as relevant to the specific case, when "it is necessary for reasons of substantial public interest based on Union or Member State law, which must be proportionate to the pursued purpose, respect the essence of the right to data protection, and provide for appropriate and specific measures to safeguard the fundamental rights and interests of the data subject" (Article 9, paragraph 2, letter g), of the Regulation as well as, with reference to national legislation, Article 2-sexies of the Code, which provides that such processing "is permitted if provided for by European Union law or, in domestic law, by provisions of law or regulation or by general administrative acts that specify the types of data that may be processed, the operations that can be performed, and the reasons for substantial public interest, as well as the appropriate and specific measures to safeguard the fundamental rights and interests of the data subject").

As far as relevant to the specific case, it is also stated that, based on the sector-specific legislation, "with the adoption, the relationships of the adopted person with the family of origin cease, except for marriage prohibitions," and that "the civil status officer, the registry officer, and any other public or private entity, authority, or public office must refuse to provide news, information, certifications, extracts, or copies from which the adoption relationship may be inferred, unless expressly authorized by the judicial authority" (Articles 27, paragraph 3, and 28, paragraph 3, of Law 184/1983).

It is noted, however, that the data controller remains obliged to comply with the principles regarding data protection, including, in particular, the principle of "lawfulness, fairness, and transparency," the principle of "accuracy," and the principle of "integrity and confidentiality," according to which personal

data must be "processed lawfully, fairly, and transparently in relation to the data subject," must be "accurate and, where necessary, kept up to date," with the data controller required to take "all reasonable measures to erase or rectify without delay inaccurate data concerning the purposes for which they are processed," and must be "processed in a manner that ensures an adequate level of security for personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage" (Article 5, paragraph 1, letters a), d), and f), of the Regulation).

In this regard, Article 32 imposes on the data controller, "taking into account the state of the art and the costs of implementation, as well as the nature, subject matter, context, and purposes of the processing, as well as the risk of varying likelihood and severity for the rights and freedoms of natural persons," to implement "appropriate technical and organizational measures to ensure a level of security appropriate to the risk," which include, among others, where appropriate, "the ability to ensure on a continuous basis the confidentiality, integrity, availability, and resilience of processing systems and services" (Article 32 of the Regulation).

#### **\*\*4. Outcome of the Investigative Activity\*\***

From the assessment carried out based on the elements acquired and the facts emerged as a result of the investigative activity, as well as the subsequent evaluations conducted by the Office, it is established that INPS, while having correctly updated the registry of the minor XX on July 21, 2021, by indicating the adoptive parents as their legal representatives, in place of the previously indicated biological parent, did not adopt the necessary measures aimed at ensuring, within the framework of the technical and organizational procedures implemented at the time of the facts subject to complaint, that communications regarding civil disability benefits were correctly transmitted to the aforementioned adoptive parents and not to the biological parent (see operational guidelines of March 22, 2021, cited above).

It has indeed been established that the operational instructions provided by INPS to the authorized personnel with the internal communication of March 22, 2021, did not contain adequate measures to mitigate the risk of a failure or untimely update in the registry of adopted minors regarding the legal representative.

This resulted in the specific case where INPS, in transmit the two aforementioned communications regarding the provision under Law 104/1992 to the biological parent of the minor XX, has dealt with inaccurate data, as it was not updated following the adoption of the minor by Mrs. XX and Mr. XX and has, consequently, communicated the personal data of the minor, including those related to her health, to a subject who - although he was aware of her health conditions, having himself previously submitted the application for recognition of the aforementioned benefits - had meanwhile lost parental responsibility for the minor, thus becoming a "third party" in relation to her (cf. art. 4, no. 10 of the Regulation), taking into account what is established by the regulations governing adoption, which provide for the cessation of relations with the family of origin and the prohibition of providing the latter with information related to the adoption relationship (cf., specifically, the aforementioned articles 27, paragraph 3, and 28, paragraph 3, of Law 184/1983), also in light of the protection guaranteed to respect for "private life" by the regulatory framework at the supranational level (cf. art. 8, para. 2, of the European Convention on Human Rights and art. 7 of the Charter of Fundamental Rights of the European Union and, for data protection aspects, rec. 1 of the Regulation).

Through the aforementioned communication, the biological parent was indeed made aware of the new surname acquired by the minor, as an element that could allow tracing the identity of her adoptive parents, thereby increasing the risks to the rights and fundamental freedoms of the parties involved, starting with the minor herself.

This conduct has also resulted in an additional detrimental effect on the minor and, consequently, on her adoptive family, having caused, due to the sending of the aforementioned communications to an incorrect address, the failure to receive the notice of summons for the review visit aimed at verifying

the continued fulfillment of the health requirements necessary to continue benefiting from the provisions of Law 104/1992 and, consequently, the suspension of such benefits. In this regard, in a note dated October 9, 2024, INPS nonetheless communicated that, following the initiation of the investigation by the Authority, “the territorially competent medical legal center has already prepared a new health report for civil disability and Law 104/92 with the personal data post-adoption,” that “the subsequent communications regarding the intervening event, as well as the measures for recognition of the right, have been correctly sent to the adoptive parent XX” and, finally, that “the economic benefits are regularly in payment and the data of the adoptive parent are correctly registered also for any rights related to the recognized severe disability of the minor, which to date have not been requested.”

## 5. Conclusions.

In light of the evaluations mentioned above, it is noted that the statements made by the data controller during the investigation - the truthfulness of which may be subject to accountability under art. 168 of the Code - while deserving of consideration, do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are insufficient to allow for the archiving of the present procedure pursuant to art. 14, paragraph 1, of the Garante Regulation no. 1/2019, as none of the cases provided for by art. 11 referenced therein apply.

Therefore, the preliminary assessments of the Office are confirmed, and the illegality of the processing of personal data carried out by INPS is noted on the grounds that the processing of personal data of the minor XX, including those related to her health, has been carried out in a manner not compliant with the principle of “accuracy” and in the absence of the appropriate and specific measures necessary to ensure adequate confidentiality of the personal data of the minor herself and her adoptive family and to ensure an adequate level of risk, specifically, of disclosure to unauthorized subjects, as well as in a manner not compliant with the principle of “lawfulness, fairness, and transparency,” due to the conflict with the regulatory framework of the sector, in violation of art. 5, para. 1, lett. a), d) and f), of art. 9, para. 2, lett. g), and of art. 32 of the Regulation, as well as of art. 2-sexies of the Code.

Considering that the violation of the aforementioned provisions occurred as a result of a single conduct, art. 83, para. 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation. Given that, in this case, the most serious violations are subject to the sanction provided for by art. 83, para. 5, of the Regulation, as also referenced by art. 166, paragraph 2, of the Code, the total amount of the sanction is to be quantified up to €20,000,000.

In this context, considering, in any case, that the conduct has exhausted its effects, also taking into account the adoption by INPS of technical and organizational measures to prevent the risk of events similar to that subject of this provision (cf. note of May 7, 2024 and, with more specific regard to communications related to applications for benefits submitted before November 15, 2023, note of October 9, 2024), as well as the specific initiatives undertaken in this case for the correct processing of the data of the interested parties in order to verify the continued fulfillment of the health requirements necessary for the enjoyment of the benefits under Law 104/1992 with reference to XX, the conditions for the adoption of further corrective measures under art. 58, para.

**\*\*2.** Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (arts. 58, par. 2, lett. i and 83 of the Regulation; art. 166, comma 7, of the Code).<sup>\*\*</sup>

The Authority, pursuant to arts. 58, par. 2, lett. i) and 83 of the Regulation as well as art. 166 of the Code, has the power to “impose an administrative pecuniary sanction pursuant to article 83, in addition to the [other] [corrective] measures referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case” and, in this context, “the Board [of the Authority] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Authority's website pursuant to article 166, comma 7, of the Code” (art. 16, comma 1, of the Regulation of the Authority no. 1/2019).

In this regard, taking into account art. 83, par. 3, of the Regulation, in the specific case, the violation of the aforementioned provisions is subject to the application of the administrative pecuniary sanction provided for by art. 83, par. 5, of the Regulation.

The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by art. 83, par. 2, of the Regulation.

Taking into overall account:

- as to the relevant profiles pursuant to art. 83, par. 2, lett. a and b), the circumstance that the violations were found in a single case; on the other hand, the circumstance that the sending of communications regarding the benefits held by the minor XX occurred in a consolidated regulatory context that provides for strict guarantees for the protection of the adopted minor and the adoptive family (cf. the aforementioned arts. 27, comma 3, and 28, comma 3, of law 184/1983), due to the failure to adopt appropriate and specific measures to ensure adequate confidentiality of the personal data of the minor and her adoptive family and to ensure a level adequate to the risk, specifically, of disclosure to unauthorized persons;
- as to the relevant profiles pursuant to art. 83, par. 2, lett. g), of the Regulation, that the processing in question involved personal data also related to the health of the minor, of which the biological parent was aware, having himself, at the time, submitted the application for recognition of the aforementioned benefits, as well as that such information presents a highly sensitive connotation and pertains to a particularly delicate dimension of the private life of the interested party, also in light of the aforementioned regulatory framework (cf. arts. 27, comma 3, and 28, comma 3, of law 184/1983);

it is believed that, in this case, the level of severity of the violation committed by the data controller is medium (cf. European Data Protection Board, "Guidelines 4/2022 on the calculation of administrative pecuniary sanctions pursuant to the GDPR" of May 24, 2023, point 60).

That said, it is believed that, for the purposes of quantifying the sanction, the following mitigating circumstances should be taken into account:

- INPS has confirmed that it promptly reactivated the provision of economic benefits for the interested party (cf. note of October 9, 2024; cf. art. 83, par. 1, lett. c) and k), of the Regulation);
- in a perspective of accountability, INPS has implemented technical and organizational measures to prevent the risk of similar violations in the future (cf. notes of May 7, 2024, and October 9, 2024; cf. art. 83, par. 2, lett. d) and k), of the Regulation);
- INPS, also considering the subsequent adoption of technical and organizational measures to prevent the risk of similar events to that subject of this provision concerning applications for benefits submitted before November 15, 2023 (cf. note of October 9, 2024), has offered full cooperation with the Authority during the investigation (art. 83, par. 2, lett. f), of the Regulation);
- there are no previous relevant violations committed by INPS (art. 83, par. 2, lett. e), of the Regulation).

By reason of the aforementioned elements, assessed in their entirety, it is believed to determine the amount of the pecuniary sanction at the sum of €20,000.00 (twenty thousand/00) for the violation of art. 5, par. 1, lett. a), d) and f), of art. 9, par. 2, lett. g), and of art. 32 of the Regulation, as well as of art. 2-sexies of the Code, as an administrative pecuniary sanction deemed, pursuant to art. 83, par. 1, of the Regulation, effective, proportionate, and dissuasive.

In this context, it is also believed that, pursuant to art. 166, comma 7, of the Code and art. 16, comma 1, of the Regulation of the Authority no. 1/2019, the publication of this section containing the injunction order on the Authority's website should proceed.

This is in consideration of the circumstance that the processing involved, in this case, personal data characterized by high sensitivity and delicacy, such as those relating to the minor concerned and her adoptive family, and has resulted, for a significant period of time, in the failure to provide economic benefits in favor of the minor herself.

Finally, it is noted that the conditions referred to in art. 17 of Regulation no. 1/2019 are met.

**\*\*ALL OF THE ABOVE CONSIDERED, THE AUTHORITY\*\***

pursuant to arts. 57, par. 1, lett. f) and 83, of the

Regulation, identifies the unlawfulness of the processing carried out by the National Institute of Social Security – INPS, for violation of Articles 5, paragraph 1, letters a), d) and f), 9, paragraph 2, letter g), and 32 of the Regulation, as well as Article 2-sexies of the Code, as detailed in the reasoning;

#### ORDERS

INPS, represented by the legal representative pro tempore, with registered office at Via Ciro Il Grande, 21 - 00144 Rome (RM), Tax Code 80078750587, to pay the sum of €20,000.00 (twenty thousand/00) as an administrative pecuniary sanction for the violations indicated in the reasoning;

#### COMMANDS

INPS, in the event of failure to resolve the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €20,000.00 (twenty thousand/00) according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of subsequent enforcement actions pursuant to Article 27 of Law No. 689/1981. It is noted that, pursuant to Article 166, paragraph 8, of the Code, the offender retains the option to resolve the dispute by paying - always according to the methods indicated in the attachment - an amount equal to half of the imposed sanction within the term set forth in Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011, provided for the submission of the appeal as indicated below;

#### DISPOSES

a) pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of the injunction order on the Garante's website;

b) pursuant to Article 154-bis, paragraph 3 of the Code and Article 37 of the Garante Regulation No. 1/2019, the publication of this provision on the Authority's website;

c) pursuant to Article 17 of the Garante Regulation No. 1/2019, the annotation of the violations and the measures adopted in accordance with Article 58, paragraph 2 of the Regulation, in the internal register of the Authority provided for by Article 57, paragraph 1, letter u), of the Regulation.

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, it is possible to appeal against this provision before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, December 19, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Cerrina Feroni

THE DEPUTY SECRETARY GENERAL

Filippi